NOBERT CHIKONHI
and
DINOH SANGARA
and
MAKAMBA MAGWENZI
and
BIGGIE MAPHOSA
versus
MINISTER OF HOME AFFAIRS AND CULTURAL HERITAGE N. O
and
COMMISSIONER GENERAL OF ZIMBABWE REPUBLIC POLICE N.O
FREDA REBECCA GOLD MINE LIMITED

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 16 February and 26 February 2026

Urgent Chamber Application for Spoliation

B. Maunze with him W. T. Mugaviri, for the applicants
F. Chimunoko, for the First and Second respondents
B. Mudhawu with him B Musikadi and M. Ngwenya for the Third respondent

MAMBARA J:

[1] This is an urgent chamber application for the mandament van spolie arising from alleged dispossession of artisanal mining places at the Blue Tents mining area near Bindura. The applicants seek interim restoration of possession pendente lite by way of a provisional order issued in terms of r 60 of the High Court Rules, 2021.

[2] At the initial hearing the parties were at odds on the factual question of who, if anyone, had been in peaceful and undisturbed possession of the specific mining places at the time alleged, and whether any deprivation was forcible or wrongful. In an endeavour to resolve that narrow factual controversy without converting urgent proceedings into a trial, I directed a ground visit.

[3]The ground visit, as matters turned out, resolved the contest in material respects. Save for the First applicant, the remaining applicants (Second, Third and Fourth) were unlawfully

dispossessed of their respective mining places. Interim relief is therefore granted in their favour only. The First applicant fails on the first requirement of spoliation, namely possession, and is non-suited at the interim stage.

Background

[4] The applicants allege that they were in occupation and working possession of particular mining places, and that the respondents, acting through or with the assistance of state agents, deprived them of possession without a court order. They approach the court on the basis that the law deprecates self-help and requires restoration of the status quo ante before any contest of right is entertained.

[5] The respondents deny despoilment. They contend, in substance, that the applicants were not in possession of the places in question, or that they left of their own accord, and thus cannot satisfy the first requirement for spoliatory relief.

[6] The matter was substantially advanced by a ground visit directed by the court. The stated purpose of the exercise was to allow identification and confirmation of the specific portions said to have been dispossessed, thereby narrowing the dispute to what is properly spoliatory and capable of urgent determination.

[7] Although correspondence was addressed to the Registrar regarding aspects of the site report and the circumstances of the visit, the central utility of the process lay in establishing, on the ground, which applicants could demonstrate prior possession of identifiable places and which could not.

[8] The court's task at this stage is not to pronounce upon mining title, legality of operations, or the comparative strength of the parties' rights. It is to decide whether spoliation, on the proven facts, has occurred and, if so, to restore possession forthwith.

Issues

[9] The issues for determination are these:

[10] First, whether each applicant has shown, on the evidence presently available (including the ground visit outcome), that he was in peaceful and undisturbed possession of the relevant mining place.

[11] Second, whether each applicant has shown that he was deprived of such possession forcibly or wrongfully, against his consent and without due process, and whether any recognised defence to spoliation has been established.

[12] Third, whether the interim relief sought by way of provisional order is competent, appropriately confined to the status quo ante, and justified on the facts.

The law

[13] The mandament van spolie is a possessory remedy aimed at the prompt restoration of possession where a party has been unlawfully deprived of prior peaceful and undisturbed possession. In spoliation proceedings the lawfulness of the applicant's possession is not the issue; the remedy is directed at suppressing self-help and restoring the status quo ante pending determination of rights in appropriate proceedings.

[14] The essential elements were crisply stated in Botha and Another v Barrett 1996 (2) ZLR 73 (S): an applicant must allege and prove (a) peaceful and undisturbed possession, and (b) deprivation "forcibly or wrongfully" without consent. These requirements have been reiterated in later Supreme Court authority.

[15] Possession is a question of fact. It comprises physical control coupled with the requisite mental element. If possession at the material time is not proved, the spoliation enquiry ends there.

[16] Where the elements of spoliation are established, the court restores possession summarily. That restoration can, in proper circumstances, entail the removal of the spoliator from the property; this does not convert the proceedings into eviction proceedings, as the removal is merely the incident of restoring the status quo ante.

[17] The recognised defences to a spoliation claim are limited. They include (a) absence of possession, (b) absence of unlawful deprivation, (c) impossibility of restoration, and (d) counter spoliation within lawful limits.

[18] The remedy must be confined to what was possessed. A court must be astute not to grant relief that is incompetent, or that extends beyond the proven scope of prior possession, or that effectively awards possession of areas never possessed.

Application of the law to the facts

[19] The ground visit was directed precisely because possession and identification of the specific places were contested. The exercise enabled the court to separate what was demonstrably possessory from what was speculative or inadequately supported on the papers.

[20] On the evidence as clarified by the ground visit, the Second, Third and Fourth applicants established prior occupational control of identifiable mining places. The deprivation that followed occurred without a court order and in circumstances constituting self-help. On these

facts, the spoliatory threshold is met: possession existed, and deprivation was wrongful in the spoliatory sense.

[21] I am fortified in taking this approach by the Supreme Court's repeated emphasis that spoliation proceedings are not an arena for deciding mining title or the comparative strength of competing claims; those are "matters for another day". The present enquiry is limited to restoring possession that was unlawfully disturbed.

[22] The First applicant stands on a different footing. The ground visit did not yield a sufficient factual basis for a finding that he was in peaceful and undisturbed possession of a mining place at the material time. In short, possession being an essential element was not proved in his case. That failure is fatal to his claim.

[23] The respondents did not, on the facts as they stand for present purposes, establish any of the recognised defences to spoliation in respect of the second, third and fourth applicants. Restoration is plainly possible. No lawful counter-spoliation was shown.

[24] The relief sought is competent if confined to restoration of the specific mining places possessed by the successful applicants, and if it does not purport to confer any substantive mining right beyond possession. The terms of the order crafted below are deliberately confined to restoration and non-interference, leaving all questions of mining entitlement, legality, and regulatory compliance for appropriate proceedings.

[25] This is therefore an appropriate case for the issue of an order for restoration.

[26] In the result, it is ordered as follows;

(a) The respondents and all persons acting through them or on their instructions shall restore forthwith the Second, Third and Fourth applicants to peaceful and undisturbed possession of their respective mining places at the Blue Tents mining area, being those places identified during the ground visit directed by the court.

(b) In the event of non-compliance with paragraph (a) above, the Sheriff (or Deputy Sheriff) is authorised and directed to reinstate the second, third and fourth applicants into such possession.

(c) The respondents and all persons acting through them are interdicted from interfering with the quiet and undisturbed possession and access of the second, third and fourth applicants to the said mining places, save by order of a competent court.

(d) The application by the first applicant is dismissed.

(e) The third respondent shall pay costs of suit.

MAMBARA J:……

Wilson Tamuka Attorneys, applicants' legal practitioners

Civil Division, legal practitioners for First and Second respondents

Chimuka Mafunga Commercial Attorneys, legal practitioners for the Third respondent